

SENATE No. 3139

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Medfield to continue the employment of David O'Toole as deputy fire chief.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 3139

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 3139) of Rebecca L. Rausch (by vote of the town) for legislation to authorize the town of Medfield to continue the employment of David O'Toole as deputy fire chief. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Medfield to continue the employment of David O'Toole as deputy fire chief.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, David O'Toole,
2 Deputy Fire Chief of the town of Medfield, may continue to serve in that position until reaching
3 age 70, the date of his retirement or the date he is relieved of his duties by the Select Board of the
4 town of Medfield, at his discretion, whichever occurs first; provided, however, that he is
5 mentally and physically capable of performing the duties of his office. The Select Board may, at
6 the Town's own expense, require that David O'Toole be examined annually by a physician
7 designated by the Select Board, to determine such physical and mental capability to perform the
8 duties of his office. No further deductions shall be made from the regular compensation of David
9 O'Toole pursuant to Chapter 32 of the General Laws for service subsequent to his reaching age
10 65; and upon retirement for superannuation, he shall receive a superannuation retirement
11 allowance equal to the allowance that he would have been entitled had he retired upon reaching
12 age 65.

SECTION 2. This act shall take effect upon its passage.